

The U.P. Coal Control Order, 1977

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State of Uttar Pradesh - Act

The U.P. Coal Control Order, 1977

UTTAR PRADESH

India

The U.P. Coal Control Order, 1977

Rule THE-U-P-COAL-CONTROL-ORDER-1977 of 1977

Published on 1 January 1977

Commenced on 1 January 1977

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The U.P. Coal Control Order, 1977

Published vide Notification U.P. Gazette vide Notification No. 11190/29-AV-1-68-DC-77-CA-10-1955-O-11-1977, dated December 28, 1977

In exercise of the powers conferred by Section 3 of Essential Commodities Act, 1955 (No. 10 of 1955

), read with Government of India [Ministry of Industry and Civil Supplies Notification No. S.O. 681 (E), dated November 30, 1974] and with the prior concurrence of the Central Government and also other powers enabling him in this behalf, the Governor of Uttar Pradesh is pleased to make the following order, namely,-

1.

Short title, extent and commencement.

- (i) This Order may be called the Uttar Pradesh Coal Control Order, 1977.

(ii)

It extends to the whole of the State of Uttar Pradesh.

(iii)

It shall come into force on the date of its publication in official Gazette.

2.

Definitions.

- In this Order unless there is anything repugnant in the subject or context,-

(a)

"Bricks" means any bricks or tiles produced with the aid of slack coal but do not include firebricks or refractory bricks and tiles;

(b)

"Brick-kiln" means any kiln at which bricks are manufactured with coal and the premises appurtenant thereto;

(c)

"Coal" means coal, coke and other derivatives and includes slack coal, steam coal, soft coke, hard coke or dust coal of various grades but does not include cinder and products and by-products of coal;

(d)

"Dealer" means a person carrying on as a principal or agent, whether separately or in conjunction with some other business, the business of import, purchase or storage for sale and sale of coal, in wholesale and granted a licence in Form 'B' and commonly known and herein referred to as Coal Agent or in retail and granted a licence in Form 'C' and commonly called and referred to herein as 'Coal Depot Holder' but does not include a consumer who imports, purchases or stores coal for his own use;

(e)

"District Magistrate" or "Licensing Authority" means the District Magistrate of the district and includes the Additional District Magistrate (Civil Supplies) or the District Supply Officer of the district or any other officer not below the rank of Area Rationing Officer authorised by the State Government to exercise the powers and to perform all or any of the functions of District Magistrate or Licensing Authority under this Order;

(f)

"Export" means to take or cause to be taken out of the Territory of the State of Uttar Pradesh but does not include transit of coal meant for other State/Union Territories in India through Uttar Pradesh;

(g)

"Import" means to bring or cause to be brought into the Territory of State of Uttar Pradesh;

(h)

"Inspector" means and includes-

(a)

in respect of coal referred to in clause (k) (a) an officer or Inspector of Food and Civil Supplies Department working under the respective State Coal Controller or the District Magistrate of the district concerned;

(b)

in respect of coal referred to in clause (k) (b) an officer or Inspector of the Industries Department: working under the respective State Coal Controller or a Zonal Industries Officer; and

(c)

or any other officer not below the rank of Inspector appointed by the State Government to exercise the powers in respect of matters specified in clause 13 of this Order;

(i)

"Licensee" means a person holding a licence under the provisions of this Order in Form 'B' or Form 'C' or Form 'D' appended to this Order;

(j)

"Retail" means the sale of coal not exceeding ten quintals on a day to any one consumer;

(k)

"State Coal Controller" means-

(a)

the Commissioner, Food and Civil Supplies, Uttar Pradesh and includes the Additional Commissioner, Joint

Commissioner and Deputy Commissioner, Food and Civil Supplies, Uttar Pradesh or any other officer not below the rank of Assistant Commissioner, Food and Civil Supplies, appointed by the State Government to administer this Order as respects coal dust (slack coal), soft coke and hard coke and steam coal for domestic consumption; and

(b)

The Director of Industries, Uttar Pradesh including an Additional Director, Joint Director or Deputy Director, Industries as respects steam coal and hard coke for industrial consumption;

(l)

"Wholesale" means sale of coal exceeding ten quintals in a day to any one consumer.

3.

Exceptions.

- (A) Nothing in this Order shall apply to-

(a)

Movement of coal under the authority of the Coal Commissioner, Government of India or any other officer acting on his behalf;

(b)

Coal moved on Railway Account;

(c)

Movement of coal under and in accordance with a Military Credit Note on Defence Account;

(d)

Movement of coal meant for the use of any Central Government Department or Corporation or under Central Government quota or under sponsoring by any authority not under the administrative control of the State Government:

Provided that such coal is consumed entirely by the Industry, Railway, Military, Central Government Department or Corporation or any other person for whom it is moved, as the case may be for its own use:

Provided further that except in so far as transfer or sale of coal to any other consumer of the same category, affected with the permission of the sponsoring authority, or competent departmental authority is concerned, if any, of the above consumers wishes to sell any part of the coal, surplus, to his requirement, to other users thereof in Uttar Pradesh he shall do so only after obtaining the permission from the District Magistrate of the district where coal is stored and if the user or any user, to whom this coal is proposed to be sold, is working in another district, the District Magistrate of that district and further shall intimate full particulars of such sale to both the District Magistrates concerned immediately after, such sale.

(B)

The provisions of clauses 4 to 10, 14 and 16 hereof, shall not apply to steam coal and hard coke for industrial consumption.

4.

Licensing.

- No person shall import coal and carry on business as a coal agent, carry on business as a coal depot holder or run a brick kiln with coal except under and in accordance with the terms and conditions of a licence issued under this Order X: Provided that any person who is engaged in such business as a coal agent at the commencement of this Order or any person who is so engaged as a Coal Depot Holder or is running a brick kiln with coal under a licence obtained by him under the Uttar Pradesh Coal Control Order, 1975, shall obtain a licence under this Order only from April 1, 1978 or the date of expiry of his current licence, whichever is earlier.

5.

Issue of licence.

(a)

Every application for the grant of renewal of a wholesale or retail licence for running a brick kiln with slack coal shall be made to the Licensing Authority in Form 'A' appended to this Order.

(b)

Every licence granted or renewed under this Order shall be in Form 'B' in the case of Coal Agent in Form 'C' and in case of Coal Depot Holder, in Form 'D' for running a brick kiln with slack coal and shall be subject to the conditions specified therein and such other conditions as the State Coal Controller or District Magistrate may prescribe from time to time.

(c)

An application for the renewal of a licence shall be so made as to reach the Licensing Authority before the date of expiry of the licence:

Provided that the Licensing Authority may entertain an application within 30 days without any late fee and within 30 days on payment of a late fee of Rs. 10 after the date on which the licence expires, if it is satisfied that the applicant was prevented by sufficient cause from making the application in time. No application for renewal of a licence will be entertained after sixty days of the date of expiry of the licence under any circumstances.

(d)

If a licence granted under this Order is recorded is defaced, mutilated or destroyed, the fact shall be intimated in writing to the Licensing Authority and the Licensing Authority may, on application in this behalf and after such enquiry as it may deem fit, issue a duplicate licence.

(e)

The Licensing Authority may, for reasons to be recorded in writing, refuse to grant or renew or issue a duplicate licence: Provided that in case of such refusal the applicant shall be furnished with a copy of the order refusing to grant or renew the licence or to issue a duplicate licence.

(f)

Any person, aggrieved by an order of the Licensing Authority under the foregoing sub-clause, may, within a period of 30 days from the date of communication of the order of such refusal, appeal to the State Coal Controller. The decision of the State Coal Controller on such appeal shall be final.

(g)

A separate licence shall be obtained by a Coal Agent for each district and by a Coal Depot Holder or brick kiln owner for each separate place of business or brick kiln.

(h)

No person shall simultaneously hold licence to work as Coal Agent and Coal Depot Holder at one place.

6.

Period of licence and fee chargeable.

- Every licence granted under this Order shall be valid up to 31st March next following the date on which it is issued and may be renewed from year to year or a maximum period of 3 years at a time on payment of the fee mentioned below:

(a) For grant of a new licence

Rs.

(i) For wholesale trade

..

60.00

(ii) For retail trade

..

30.00

(iii) For running a brick kiln
with coal

..

45.00

(b) For renewal of a licence-

(i) For wholesale

..

40.00 per annum or part thereof,

(ii) For retail

..

20.00 per annum or part thereof.

(iii) For running a brick kiln
with coal

..

30.00 per annum or part thereof.

(c) For issue of a duplicate licence-

(i) For wholesale

..

30.00

(ii) For retail

..

15.00

(iii) For running a brick kiln

with coal

..

20.00

7.

Security.

(a)

Each applicant for grant of a licence under this order shall, within a week of the demand and before issue of the licence, furnish a security of Rs. 1,000 in the case of Coal Agent, Rs. 200 in the case of Coal Depot Holder and Rs. 300 in the case of brick kiln run with coal in the form of fixed deposit in a Scheduled Bank duly pledged to the District Magistrate concerned, for the compliance of the provisions of this order and performance of the terms and conditions of the licence.

(b)

The licence shall, if the amount of security at any time falls short of the amount specified in the foregoing sub-clause, forthwith deposit the amount to make up the deficiency in the amount of security on being required to do so by the Licensing Authority.

(c)

The whole or any part of the amount of the security which is not forfeited under the provisions of this order, shall, on application being made for that purpose, be refused to the licensee on the termination of his licence. No application for such refund shall be entertained after one year from the date of termination of the licence and the security, in whole or in part, as the case may be, shall be forfeited to the State Government.

8.

Directions regarding import, purchase, sale, storage and distribution.

- (i) A licence under this Order-

(A)

shall acquire full quota of coal allotted to him, unless prevented by sufficient cause to the satisfaction of the District Magistrate;

(B)

shall comply with any direction that may be issued to him from time to time by the State Coal Controller or the District Magistrate in regard to import, purchase, sale, storage or distribution of coal or for running a brick kiln with coal and sale and distribution of bricks, as applicable to him.

(ii)

(A)

The coal agent shall not sell coal at rates higher than those fixed from time to time by the District Magistrate in the following manner-

(a)

F.O.R. colliery price actually paid by the dealer;

(b)

Central and State Sales Tax or any other taxes; cesses and duties at rates applicable at the time of sale; and

(c)

Handling charges at such rate per metric tonnes of coal as may, from time to time, be fixed by the State Government.

(B)

A coal agent shall sell coal to any person who does not hold a licence issued under this Order.

(iii)

A Coal Depot Holder shall-

(a)

sell coal in accordance with the instructions of the District Magistrate issued from time to time;

(b)

not dispose of coal until its rates have been fixed by the District Magistrate;

(c)

not sell coal at rates higher than those fixed from time to time by the District Magistrate in the following manner:

(1)

Price of coal paid by him to the wholesale dealer as fixed by the District Magistrate under sub-clause (ii) (A) of this clause;

(2)

Railway freight including or other charges collected by the Railway, exclusive of wharfage and demurrage paid to the Railway, if any, or the actual freight paid- by road subject to the maximum as per rates fixed by the Transport Departments;

(3)

Octroi, toll or any other tax or fee actually paid, if any, at destination;

(4)

Charges or unloading of wagons, transport charges from Railway Station to the Depot premises and other incidental expenses as fixed by the District Magistrate in respect of each town, area of a town or village;

(5)

Wastage and shortage allowance at such rates as may be fixed by the District Magistrate but subject to a maximum of 12½ per cent in the case of soft coke and 10 per cent in the case of steam coal and hard coke, as calculated on price;

(6)

Profit at the rate of 10 percent as calculated on items (1) to (5) above;

(7)

Sales Tax levied by the Government at rates applicable at the time of sale.

(iv)

A licence in Form 'D' or person running a brick kiln with coal-

(a)

shall not utilise or cause to be utilised coal allotted to him or in stock with him for a purpose other than burning bricks and shall not divert or transfer any such coal to any other person or any other brick kiln, even though owned by him, except under a written authority from the District Magistrate;

(b)

shall sell the whole or a specified part of his stock of bricks produced with the aid of slack coal to a person as may be specified in a permit issued in that behalf of the District Magistrate and addressed to him;

(c)

shall manufacture with the aid of slack coal bricks of such sizes as may be fixed by the District Magistrate and shall further sell them at such prices as may be fixed by the District Magistrate for different sizes and classes of bricks.

Note. - For the purpose of this sub-clause, the District Magistrate may, subject to any direction of the State Government by general or special order, fix-

(a)

the sizes of which bricks with the aid of slack coal are to be manufactured; and

(b)

the maximum price at which different classes of such bricks may be sold to the public in general and in bulk to construction agencies in the public section particularly by any person, such price being based on the estimated cost of manufacture of bricks plus reasonable margin of profit thereon:

Provided that different prices may be fixed in respect of different classes and sizes of such bricks for different localities in the district having regard to different circumstances pertaining thereto.

9.

Maintenance of accounts.

(a)

Every dealer shall maintain a true account of the stock of daily receipt and disposal of coal and keep it up-to-date at the place of his business for inspection as and when required.

(b)

Every Coal Depot Holder shall maintain a daily register of sales in suitable form.

(c)

Every licensee shall send an accurate monthly stock return in Form 'E' to the District Magistrate by the 7th day of the month following the month to which it relates.

10.

Display of stock position.

- Every dealer shall display at a conspicuous place of his business premises, the opening balance and price of each variety of coal in stock before the commencement of business on each day:

Provided that a wholesale dealer or Coal Agent, who does not stock coal physically, shall not be required to display the stock position.

11.

Delivery of Consignments of Coal by rail.

- All licensees and other person acting on their behalf shall submit the Railway Receipts pertaining to consignments of coal for counter signatures, before taking delivery thereof from the Railway-

(a)

to the Licensing Authority or in his absence to any other officer authorised by him in this behalf as respect coal referred to in clause 2 (k) (a); and

(b)

to Zonal Industries Officer or in his absence any other officer authorised by him in this behalf as respects coal referred to in clause 2 (k) (b).

12.

Export of coal bricks.

- No person shall export, cause to be exported or offer for export coal or bricks produced with the aid of slack coal from the territory of Uttar Pradesh without obtaining prior written permission from the representative State Coal Controller:

Provided that nothing in this clause shall apply to bona fide traveller carrying to any place, outside the State of Uttar Pradesh coal, not exceeding ten quintals in weight, as a part of his household effects.

13.

Power of entry, search, seizure, etc.

- (i) The State Coal Controller or Licensing Authority or any Inspector may, with a view to securing compliance with this Order-

(a)

enter upon and inspect any premises on which he has reasons to believe that coal has been or is being or is likely to be kept, stored, distributed, disposed of or to and from which coal has been or is being, or is likely to be removed or transported;

(b)

stop and inspect any vehicle or animal in or on which coal is being carried for sale, supply or storage or for any other purpose;

(c)

seize coal found in the possession of any person or in any vehicle or on any animal in respect of which he has reason to believe that contravention of this Order has been, or is being, or is about to be committed; and

(d)

seize any record pertaining to coal of which he has reasons to believe that contravention of this Order has been, or is being, or is about to be committed.

(ii)

Every person (including his agent and servant) in charge of vehicle or animal or premises which is searched or is sought to be searched under the provisions of sub-clause (i) shall allow the authority, making the demand, access, to such premises, vehicle or animal and shall also answer truthfully to the best of his knowledge and belief all questions put to him.

(iii)

The provisions of Section 100 of the Code of Criminal Procedure, 1973, relating to search and seizure shall so far as

may be, apply to searches and seizure under this Order.

14.

Power to call for information.

- Every licensee under this order or other user of coal shall, when so required by general or special directions by the State Coal Controller or the Licensing Authority, furnish truthfully and to the best of his knowledge such particulars or information relating to coal or bricks as may be required.

15.

Penalties.

(1)

If any person imports or sells, or uses coal for burning bricks without obtaining a licence in appropriate form as prescribed in this order or sells coal in contravention of clause 3 or exports coal in contravention of clause 12 or abets or causes to be abetted such import, sale, use of export or (a) cancels, destroys, mutilates or defaces any book or any other documents, or (b) refuses to give any information lawfully demanded of him under this order or gives false information, or (c) acts in contravention of any other provision of this order, he shall be punishable under the provisions of Essential Commodities Act, 1955.

(2)

(i)

If a licensee under this Order or his agent or servant or any other person acting on his behalf:

(a)

obtains a licence by giving wrong facts in the application for licence;

(b)

contravenes any provision of this order or any direction of the State Coal Controller or the District Magistrate issued under this order;

(c)

contravenes any condition of the licence;

(d)

transfers his licence to any other person without the previous permission in writing of the Licensing Authority, then without prejudice to any other action that may be taken against him, the Licensing Authority may, for reasons to be recorded in writing, order-

(a)

suspension of his licence for a period to be specified in the order, such periods not extending beyond the date of normal expiry of the licence or cancellation or revocation of his licence and may also, if so considered necessary, order transfer of his stock to some other licensee or person at the price fixed under clause 8(ii) (a) or 8(iii)(c), as the case may be; or

(b)

forfeiture of his security either in whole or in part and also, if so considered necessary, may not allot him any coal for such period as may be. specified in the Order:

Provided that no such order shall be passed unless the licensee has been given a reasonable opportunity of stating his case in writing.

(ii)

The licensee, aggrieved by such order, may within a period of 30 days from the date of communication of the order, appeal to the State Coal Controller. The order of the State Coal Controller passed on appeal shall be final.

16.

Effect of suspension or revocation of licence.

- Suspension or revocation of a licence or forfeiture of security in whole or in part shall not entitle a licensee to any compensation or to the refund of any fee paid by him for such a licence.

17.

Power of State Government to call for records and pass orders.

- The State Government may call for the records of any case and pass such orders in the case as may in the circumstances, appear to it necessary in the public interest.

18.

Power to exempt.

- The State Government or, for reasons to be recorded in writing, the State Coal Controller may by general or special order, exempt any person or class of persons from the operation of all or any of the provisions of this order and may also at any time suspend or rescind such exemption.

19.

Savings.

- Any order made or directions issued or deemed to be made or issued under the Uttar Pradesh Coal Control Order, 1975, or Uttar Pradesh Bricks Control Order, 1971 (as amended from time to time) and in force immediately before the commencement of this order shall continue and to be an order made under this order or directions issued under this order.

Form 'A'

Form of application for a licence as a dealer of coal in whole sale/ retail for allotment and use of coal or running a brick kiln for renewal of licence:

1.

Name of the applicant

?

...

...

...

...

2.

Address-(a) business

?

...

...

...

...

(b) residential

?

...

...

...

...

3.

Father's/Husband's name

?

...

...

...

...

4.

If the application is made on behalf of a firm, incorporated company or Co-operative Society, state its trading name and the name of in which the licence is required

?

...

...

...

...

5.

Names and addresses of all partners/directors and agents, members of the Managing Body or Administrative Officials, as the

case may be-

?

...

...

...

...

(i)

?

...

...

...

...

(ii)

?

...

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...

...

(iii)

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...

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...

...

(iv)

?

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...

...

(v)

?

...

...

...

...

6

Exact address and location of business premises/site where
the brick kiln is situated

?

...

...

...

...

7

Exact address of the office if it is different from the
business premises or site of the brick kiln mentioned against the
foregoing item ...

?

...

...

...

...

8

Previous experience in the business for which licence is required...

?

...

...

...

...

9

Particulars of other similar business held by the licensee is required...

?

...

...

...

...

10

Did you or any of the partners ever apply for such licence before and if so with what result?...

?

...

...

...

...

11

Have you or any of the partners ever been prosecuted for a breach of any Control Order, if so, give brief particulars...

?

...

...

...

...

12

Number and date of the existing licence, the renewal of which is applied for and the period for which such renewal is desired

...

?

...

...

...

...

I/We have carefully read the provisions of the Uttar Pradesh Coal Control Order, 1977 and understand that the licence issued to me/us will be subject to the provisions of this Order and that any breach of the conditions of such licence will amount to a breach of such order.

2. I/We declare to the best of my/our information and belief the above information is correct and complete.

Dated.....

Signature of the Applicant(s)

District.....

Note. - Strike off whatever is not applicable.

Licence in Form 'B'

Licence for wholesale dealer of coal (coal agent) for soft coke and slack coal for domestic consumption and use by brick kilns under the Uttar Pradesh Coal Control Order, 1977.

(1)

Register no.

?.
....

Licence no. ...

....

?.
....

(2)

Name of the Licensee

?.
....

....

....

?.
....

(3)

Business address

?.
....

....

....

?.
....

(4)

Exact location of the place of storage if it is different
from the business address

?.
....

....

....

?.
....

(5)

This licence is valid up to

?.
....

....

....

?.
....

(6)

The licence is granted subject to the conditions noted below:

?.
....

....

....

?.
....

Dated.....

Signature of Licensing Authority District.....

Renewal Endorsement

Date of renewal

Date of expiry

Signature of Licensing Authority

Remarks

Conditions of Licence

1. The licensee shall maintain an office or branch office in the district.

2. The licensee shall display his licence prominently at the place of his business.

3. The licensee shall not carry on business or store coal except in the premises specified in this licence provided that the

premises may be changed or additional premises used with the permission of the Licensing Authority.

4. The licensee shall maintain a Stock and Sales Register or such other register and submit such returns as may be required by the Licensing Authority or the State Coal Controller.

5. The licensee shall take timely action to submit programme for the movement of the coal, allotted to him by the Licensing Authority, with the Coal India Limited or its subsidiary concerns and the Railway and shall advise the Licensing Authority of reasons for which he does not intend to submit or has not submitted the programme for any movement or intends to or has got such programme cancelled at the time of allotment. He shall be liable for appropriate action if such reasons are not found satisfactory by the Licensing Authority.

6. Licensee shall import coal only of good quality and proper size which should be according to the specifications laid down by the Indian Standards Institute.

7. The licensee shall furnish particulars of grade of coal, Railway receipt and colliery bill of the coal immediately after its loading from the colliery to the Licensing Authority so that he can allot it to licensees in Form 'C' or 'B', as the case may be, before the coal actually arrives at the destination.

8. The licensee shall sell coal to licensee in Form 'C' and 'D' issued under the U.P. Coal Control Order, 1977 as per allotment made by the Licensing Authority. If any allottee does not take delivery of the coal allotted to him within 24 hours of the arrival of the coal at the destination station (of which the licensee shall inform the allottees), the licensee shall after taking permission from the Licensing Authority, be at liberty to sell it to other licensee in Form 'C' and 'D' in the district and if such coal or any part thereof cannot be sold in the district within the next 24 hours, may, with the previous approval of the Licensing Authority, sell it to the licensees of other districts of U.P.

9. The licensee shall not refuse to sell or withhold from sale any coal in his possession in such quantities at such time, to such persons and in such manner as the Licensing Authority may, by written order, direct.

10. The licensee shall charge the price of coal from the purchasers only at the time of or after the sale and not before.

11. The licensee shall render all reasonable facilities to persons authorised by the Licensing Authority for inspection of his premises, stock and accounts.

12. The licensee shall render all reasonable facilities to furnish correctly such information as may from time to time be demanded from him and shall carry out such instructions as may, from time to time, be given to him by the Licensing Authority.

13. Any contravention of these conditions by the licensee or by his agent or servant will render the licence liable to cancellation without prejudice to any other action that may be taken against him.

Licence in Form 'C'

Licence for a retail dealer (Coal Depot Holder) of soft coke, hard coke, steam coal for domestic consumption under the Uttar Pradesh Coal Control Order, 1977.

(1)

Register no.

?.

Licence no. ...

....

?.

(2)

Name of the Licensee

?.

....

....

?.

(3)

Business address

?.

....

....

?.

(4)

Exact location of the place of storage if it is different
from the business address

?.
....
....
?.

?.

(5)

This licence is valid up to

?.
....
....
?.

?.

(6)

The licence is granted subject to the conditions noted below:

?.
....
....
?.

Dated.....

Signature of the Licensing Authority District.....

Renewal Endorsement

Date of renewal

Date of expiry

Signature of Licensing Authority

Remarks

Conditions of Licence

1. The licensee shall display his licence prominently at the place of his business.
2. The licensee shall display in a prominent place of the business premises a list showing the control price of each variety of coal as fixed by the Licensing Authority and quantity of such coal available on that date and he shall not sell or offer for sale each variety of coal over and above the price fixed for the variety.
3. The licensee shall not carry on business or store coal except in the premises specified in this licence provided that the premises may be changed or additional premises used with the permission of the Licensing Authority.
4. The licensee shall maintain a Stock and Sales Register or such other register and submit such returns as may be required by the Licensing Authority or the State Coal Controller.
5. The licensee shall not refuse to sell or withhold from sale any coal in his possession in such quantities at such times, to such person and in such manner as the Licensing Authority may, by written order, direct.
6. The licensee shall render all reasonable facilities to persons authorised by the Licensing Authority for inspection of his premises, stock and accounts.
7. The licensee shall furnish correctly such information as may from time to time, be demanded of him and shall carry out such instructions as may from time to time, be given to him under this Order, by the Licensing Authority.
8. Any contravention of the conditions by the licensee or by his agent or his servant will render the licence liable to cancellation without prejudice to any other action that may be taken against him.

Licence in Form 'D'

Licence for running a brick-kiln with coal under the U.P. Coal Control Order, 1977.

(1)

Register no.

?.
Licence no. ...
....
?.

?.

(2)

Name of the Licensee

?.

....

....

?.

(3)

Business address

?.

....

....

?.

(4)

Exact address and location of the..... site of the brick-kiln.

?.

....

....

?.

(5)

This licence is valid up to

?.

....

....

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(6)

The licence is granted subject to the conditions noted below:

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District

Date of issue.....

Signature of the Licensing Authority

Renewal Endorsement

The licence is renewed up to-

Date of renewal

Date of expiry

Signature of Licensing Authority

Remarks

Conditions of Licence

(1)

The licensee shall display his licence prominently at his place of business.

(2)

The licensee; shall not burn brick or carry on business except in the premises specified in this licence provided that the premises may be changed or additional premises used if, on application to the Licensing Authority, such Authority has made the necessary amendments in the licence.

(3)

The licensee shall maintain such registers and submit such returns as may be required by the Licensing Authority.

(4)

The licensee shall comply with any general or special directions issued by the State Coal Controller or the Licensing Authority from time to time under this order in regard to the disposal or sale of any stock of coal or bricks held by him.

(5)

Any contravention of the conditions by the licensee or by his agent or his servant will render the licence liable to cancellation without prejudice to any other action that may be taken against him.

Form 'E'

Monthly return of Coal and Bricks

1. Name and address of the licensee.
2. Stock return for the month of.

A-Coal

Kind of Coal

Opening balance

Receipt during the month

Total stock available during the month

Quantity sold/ utilised during the month

Balance in hand on the last date of the month

Remarks, if any

B-Bricks

Class of bricks

Opening balance

Production during the month

Total stock available during the month

Quantity sold and otherwise disposed of during the month

Balance in hand on the last date of the month

Remarks if any

Date.....

Signature of Licensee.Licence No.....

Related AI tags, queries and research notes

Translation